



CHAPTER xlvii.

An Act to vary and amend the provisions of the South
Staffordshire Mines Drainage Acts 1891 and 1894 and
for other purposes. A.D. 1904.
[24th June 1904.]

WHEREAS the South Staffordshire Mines Drainage Act 1873 (in this Act referred to as "the Act of 1873") was passed for the purpose of facilitating the drainage of mines in parts of South Staffordshire and East Worcestershire and that Act was subsequently varied and amended by the South Staffordshire Mines Drainage Acts 1878 and 1882 : 36 & 37 Vict.
c. cl.

And whereas the arbitrators appointed under the provisions of the Act of 1873 shortly after their appointment divided the drainage area into drainage districts in accordance with the directions contained in the twenty-third section of the same Act and one of such districts as subsequently altered by an award of the arbitrators dated the ninth day of March one thousand eight hundred and eighty-one is called or known by the name of "the Tipton district" :

And whereas under the provisions of the South Staffordshire Mines Drainage Acts 1873 to 1882 (in this Act referred to as "the Acts of 1873 to 1882") the drainage commissioners thereby appointed (in this Act referred to as "the Commissioners") from time to time borrowed divers sums of money on mortgage of the mines drainage rate levied in the said Tipton district (in this Act referred to as "the Tipton rate") and the total sum of two hundred and sixty-five thousand two hundred and ninety-five pounds is now owing in respect of principal moneys with an arrear of interest : 41 & 42 Vict.
c. lxxxii.
45 & 46 Vict.
c. cxxxi.

And whereas the Commissioners being unable to pay the current interest on the said sum so borrowed an action against them was commenced in the month of October one thousand eight

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A.D. 1904. — hundred and eighty-eight in the Chancery Division of the High Court by Francis William Victor Mitchell and John Biddle Manly as plaintiffs on behalf of themselves and all other their co-mortgagees of the Tipton rate and by the judgment in the said action dated the second day of November one thousand eight hundred and eighty-eight a receiver of the Tipton rate was appointed and directions were given as to the application of the moneys received by him and the further consideration of the said action was adjourned :

54 & 55 Vict.
c. clxxxv.

And whereas by the South Staffordshire Mines Drainage Act 1891 (in this Act referred to as "the Act of 1891") the said action was stayed and a permanent receiver was appointed of the Tipton rate and revenue as from the first day of July one thousand eight hundred and ninety-one :

And whereas by the Act of 1891 it was enacted that in addition to the powers of borrowing conferred on them by the Acts of 1873 to 1882 the Commissioners might for the purposes of the Act now in recital borrow any moneys either at one time or several times not exceeding in the whole one hundred thousand pounds and that such moneys should be secured by mortgage or mortgages upon the Tipton rate and upon all other moneys in the nature of income receivable by the Commissioners from any other source in respect of the drainage of mines in the Tipton district only and also (subject to the provisions thereafter contained) upon all property of the Commissioners for the time being situate in the Tipton district and acquired by them for the purposes of the drainage of mines in that district (not including the general drainage rate or any property acquired by the Commissioners for the purpose of general drainage) which rate income and property by the Act now in recital authorised to be mortgaged were in the said Act and are in this Act referred to as "the Tipton revenue and property" and separately as "the Tipton revenue" and "the Tipton property" and that notwithstanding anything contained in the Acts of 1873 to 1882 or in the Commissioners Clauses Act 1847 or in the Local Loans Act 1875 or in the several existing mortgages of the Tipton rate the several mortgages created under the powers of the said Act now in recital should rank as a first charge on the Tipton revenue and property in priority to all existing mortgages of the Tipton rate and should be called mortgages of the A class and that all then existing mortgages and all mortgages issued in exchange for existing mortgages under the

provisions contained in the said Act now in recital should be called A.D. 1904.
mortgages of the B class :

And whereas under the provisions of the same Act a committee (hereinafter referred to as "the mortgagees' committee") representing the holders of the mortgages of the B class has been appointed by the name of the mortgagees' committee with the powers and authorities specified in the said Act (including a power to object to any proposed expenditure of moneys borrowed under the Act of 1891) :

And whereas the Commissioners having been unable to raise the said sum of one hundred thousand pounds or any part thereof on the security of the Tipton revenue and property only they were by the South Staffordshire Mines Drainage Act 1894 (in this Act referred to as "the Act of 1894") empowered to borrow the said sum not only on the security of the Tipton revenue and property but also collaterally on the security of a contingent first charge on the fee simple and inheritance of certain of the mines and minerals situate within the said Tipton district and described in the First Schedule to the Act of 1894 and in this Act referred to as "the scheduled mines" :

And whereas by the Act of 1894 it was further enacted that a scheme or schemes for the whole of the Tipton district with respect to the sites for any proposed new engines and with respect to any proposed alterations and improvements of the existing engines should be prepared and should comprise as far as practicable the drainage of the whole of the district and the said Act contained provisions with respect to the approval and sanctioning of the works referred to in any such scheme and it was thereby further provided that no part of the one hundred thousand pounds authorised by the Act of 1891 to be borrowed should be spent on the aforesaid works save in accordance with the provisions of such scheme or schemes and that the powers of the mortgagees' committee under the Act of 1891 to object to any proposed expenditure of moneys borrowed under that Act should extend and apply also to any objection to any of the works proposed :

And whereas a scheme for the whole of the Tipton district has accordingly been prepared which has been recommended by the arbitrators appointed under the Act of 1891 and has been duly advertised and approved by the mortgagees' committee :

And whereas the Public Works Loan Commissioners in the month of June one thousand eight hundred and ninety-five agreed

A.D. 1904. — to lend to the Commissioners by instalments the sum of one hundred thousand pounds (since reduced by mutual consent to eighty thousand pounds) on mortgage of the Tipton revenue and property and (as a collateral security) of the fee simple and inheritance of the scheduled mines subject to and with the benefit of the conditions and provisoes contained in the Act of 1894 :

And whereas it is anticipated that the works mentioned in the scheme will be completed within two or three years from the present time and that thereafter the Tipton rate and revenue will increase and the expense of pumping the water from the mines in the Tipton district diminish to such an extent as to enable the Commissioners to pay working expenses and to provide for the interest on and the instalments for repayment of capital of the said sum of eighty thousand pounds but in the meantime the Tipton rate and revenue are insufficient for those purposes :

And whereas on making up the accounts of the Commissioners for the year ending the thirtieth day of June one thousand nine hundred and three it was ascertained that there had been paid on revenue account in excess of revenue actually received a sum of four hundred and thirty-three pounds fourteen shillings and one penny for working expenses and a sum of eight hundred and seventy-eight pounds paid to the Public Works Loan Commissioners making together the sum of one thousand three hundred and eleven pounds fourteen shillings and one penny and it is expedient that the said last-mentioned sum should be recouped to the revenue account :

And whereas in these circumstances the Public Works Loan Commissioners and the mortgagees' committee are willing and it is expedient that subsection (3) of section 12 of the Act of 1891 relating to a sinking fund be repealed and that advances out of the moneys lent or to be lent by the Public Works Loan Commissioners be sanctioned for the payment of working expenses and to a limited amount for working capital which will enable the receiver to pay to the B mortgagees the sum of two thousand four hundred and thirty-five pounds four shillings and threepence which it is claimed might and should have been paid to them if it had not been retained to meet working capital :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1904.

1. This Act may be cited as the South Staffordshire Mines Drainage Act 1904. Short title.

2. In this Act the several words and expressions to which meanings are assigned by the South Staffordshire Mines Drainage Acts 1873 to 1894 or any of them or by the Acts wholly or partially incorporated with those Acts or with any of them have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

3. Subsection (3) of section 12 of the Act of 1891 is hereby repealed and it shall be lawful for the Commissioners to enter into and carry into effect any agreements with the Public Works Loan Commissioners with respect to the mode and time of repayment of the principal moneys borrowed by the Commissioners under the Acts of 1891 and 1894 and the payment of interest thereon either in lieu of or in addition to those contained in the indenture of mortgage for securing the said moneys which is dated the twenty-second day of June one thousand eight hundred and ninety-five. Provided always that the provisions of this section shall not be deemed to advance the priority of the payments referred to in subsections (4) to (9) of the said section 12 of the Act of 1891 but that all payments to be made by the Commissioners under any such agreement as aforesaid shall be made in priority to the said payments referred to in the said subsections (4) to (9). Repeal of subsection (3) of section 12 of Act of 1891 and substituted provisions.

4. If at any time before the expiration of one year after the completion and coming into actual operation of the works comprised in the scheme made under the Act of 1894 or before the thirtieth day of June one thousand nine hundred and nine (whichever shall first happen) the Tipton rate and revenue shall be insufficient to meet in full the working expenses of the Tipton district (including the financial year ending the thirtieth day of June one thousand nine hundred and four) the Commissioners may out of the moneys borrowed or to be borrowed from the Public Works Loan Commissioners make up any such deficiency and may also out of such moneys recoup to the revenue account the sum of one thousand three hundred and eleven pounds fourteen shillings and one penny hereinbefore referred to. Provided that any sum or sums so appropriated and applied out of moneys so borrowed shall Power to make up deficiency on working expenses account.

A.D. 1904. — be recouped to the capital account of such moneys out of the Tipton rate and revenue when and as soon as the sums to the credit of such rate and revenue will admit of such recoupment.

Power to
provide
working
capital.

5. The Commissioners may out of the moneys so borrowed or to be borrowed as aforesaid provide moneys for working capital in connection with the exercise and performance of their powers and duties to an amount not exceeding in the whole four thousand pounds.

Incidence
of costs of
obtaining
this Act.

6. The costs charges and expenses (including those of the mortgagees' committee) preliminary to and of and incidental to the preparing applying for obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Commissioners in the first instance either out of moneys borrowed by them under the Acts of 1891 and 1894 or out of moneys received or to be received by them in respect of the general drainage rate or out of both sources Provided nevertheless that all such costs paid out of money received or to be received in respect of the general drainage rate shall be recouped to that rate by money borrowed under the Acts of 1891 and 1894 and if such money prove insufficient then the same shall be recouped to the general drainage rate out of money to be received from the Tipton rate by four equal annual instalments and as part of the working expenses chargeable to the Tipton rate and such costs so paid out of money to be received from the Tipton rate (if any) shall be recouped to that rate out of moneys borrowed by the Commissioners under the Acts of 1891 and 1894 if and whenever the same shall be so borrowed.

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